

Section M – Evaluation Factors for Award

1. BASIS FOR AWARD

A. Basis for Subcontract Award

This is a lowest price technically acceptable source selection conducted in accordance with Federal Acquisition Regulation (FAR) 15.3, Source Selection, as supplemented by the Department of Energy Federal Acquisition Regulation Supplement (DEARS), and SLAC Terms and Conditions. SLAC will select the best overall offer, based upon an integrated assessment of all the technical factors and subfactors to include Price.

The subcontract may be awarded to the Offeror who is deemed responsible in accordance with the FAR, as supplemented, whose proposal conforms to the solicitation's requirements (to include all stated terms, conditions, representations, certifications, and all other information required by this solicitation) and is judged, based on the evaluation factors and subfactors to represent the best value to SLAC.

SLAC seeks to award to the Offeror who gives SLAC the greatest confidence that it will best meet, or exceed, the requirements. This may result in an award to a higher rated, higher priced Offeror, where the decision is consistent with the evaluation factors, and the Source Selection Authority (SSA) reasonably determines that the technical superiority and/or overall business approach of the higher price Offeror outweighs the cost difference. The SSA will base the source selection decision on an integrated assessment of proposals against all source selection criteria in the solicitation (described below).

While SLAC's source selection evaluation team and the SSA will strive for maximum objectivity, the sources election process, by its nature, is subjective; and therefore, professional judgment is implicit throughout the entire process.

B. Number of Subcontracts to be Awarded

SLAC intends to award one firm-fixed price subcontract under this RFP.

C. Rejection of Unrealistic Offers

SLAC may reject any proposal that is evaluated to be unrealistic in terms of program commitments, subcontract terms and conditions, or unrealistically low in cost when compared to SLAC's estimates, such that the proposal is deemed to reflect an inherent lack of competence or failure to comprehend the complexity and risks of the program.

D. Correction Potential of Proposals

SLAC will consider, throughout the evaluation, the "correction potential" of any deficiency or uncertainty. The judgment of such "correction potential" is within the sole discretion of SLAC. If

an aspect of an Offeror's proposal does not meet SLAC's requirements and is not considered correctable, the Offeror may be eliminated.

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2. EVALUATION FACTORS

A. Evaluation Factors and Subfactors

1. The following evaluation factors and subfactors will be used to evaluate each proposal. Award will be made to the Offeror proposing the combination most advantageous to SLAC based upon the evaluation factors and subfactors described below. Refer to Subcontract Section L for full description of evaluation factors.

VOLUME 1 - TECHNICAL PROPOSAL EVALUATION

Technical Factor 1 – Technical Approach

Offeror will be evaluated as set forth below.

Sub-factor 1.1: Offerors will be evaluated on how proposed approach for design development, pre-construction, construction, and post-construction activities support the Statement of Work, specifications, and drawings. Approach to long lead-time materials/equipment, cost control systems, utilization of Sub-subcontractors, and project close-out will be evaluated as well.

Sub-factor 1.2: Offerors will be evaluated on whether assumptions and clarifications affect the Offeror's proposal in terms of meeting all the technical requirements in accordance with the Statement of Work, specifications, and drawings.

Sub-factor 1.3: Offerors will be evaluated on whether the description of post award activities is included and reasonable for the scope.

Sub-factor 1.4: Offerors will be evaluated on their Quality Assurance plan and if it provides clear and considers key project activities.

Sub-factor 1.5: Offerors will be evaluated on the proposed approach to resolving differing field conditions and owner design requirement changes.

Technical Factor 2 – Safety

Offeror will be evaluated as set forth below.

Sub-factor 2.1: Offeror's ES&H program will be evaluated for how well it meets the requirements outlined in SLAC Fixed Price Construction Terms and Conditions, Article 15, "ENVIRONMENTAL, SAFETY, AND HEALTH PROTECTION – CODES AND STANDARDS."

Sub-factor 2.2: Information provided by Offeror will be validated and checked for non-compliance and/or criminal or civil enforcement activity.

Sub-factor 2.3: Offeror will be required to submit and obtain SLAC's approval for Offeror's completed Subcontractor Construction Safety Qualification Form (SQF):

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- Using Offeror's Experience Modification Rate (EMR) offer will be evaluated on whether it's EMR is equal to or below 1.0; and
 - Offeror's OSHA 300 logs for self- performed work performed over the past 3 years will be reviewed for any fatalities or serious injuries.
 - If the Offeror has an approved SQF valid through August 2025 the SQF form and related documents do not need to be completed, but the Offeror should state that is already and approved SQF on file.

Sub-factor 2.4: Offeror's LOTO Program will be evaluated on clarity and acceptability.

Sub-factor 2.5: Offeror's proposed approach for completing safety Work Planning Controls (WPC) activities will be evaluated on clarity and acceptability.

Sub-factor 2.6: Offeror's program/initiative will be evaluated on clarity and demonstrating that provided documentation supports the program, as well as demonstrating a clear, logical process for addressing safety concerns and implementing corrective actions.

Technical Factor 3 – Schedule

Sub-factor 3.1: Offeror's proposed project schedule for design development, BIO review, pre-construction, construction, and post- construction activities support will be evaluated on three points:

- Inclusion of specified Project Milestones
- For clearly demonstrating a thorough understanding of SLAC specific preconstruction activities, and their durations by including Project Notice-To-Proceed (NTP), Safety Submittals Approvals, Site Mobilization, Construction Invasive (LOTO, COHE) Activities Start, LOTO/System Outages, Testing and Commissioning, Inspections and Acceptance.
- Inclusion of logic to the schedule and identification of the critical path

Sub-factor 3.2: Offeror's schedule assumptions and clarifications will be evaluated for clarity and acceptability while considering SLAC Statement of Work, specifications and drawings.

Technical Factor 4 – Project Management

Sub-factor 4.1: Offeror's proposal will be evaluated on whether planned resources and methodologies support the Offeror's ability to exceed, meet, or not meet schedule requirements as outlined in the Statement of Work, performance specifications, complete testing and commissioning, complete and submit documentation as required, complete required training, and closeout the projects.

Sub-factor 4.2: Offeror's proposed approach will be evaluated on whether risk management is clear, acceptable, and likely to proactively mitigate risk.

Sub-factor 4.3: Offeror's communication plan will be evaluated for clarity, acceptability and thorough inclusion of stakeholders and personnel.

Sub-factor 4.4: Offeror's cost management approach will be evaluated for clarity, proactiveness, trackability and transparency.

Technical Factor 5 – Experience

Sub-factor 5.1: Offeror will be evaluated on how well Offeror's and proposed Sub-subcontractors' (including joint venture partners and consultants) experience demonstrates their ability to perform the scope of work defined in the Subcontract.

Sub-factor 5.2: Evaluation of submitted documentation describing demonstrated ability to plan, finance, and execute at least 3 similar/comparable projects. Examples are within the local market and similar in size, scope, value, schedule requirements and complexity, meeting all criteria for a construction project. Offeror will be evaluated for how well they demonstrate ability to employ management actions to achieve improvements and/or rectify problems.

Sub-factor 5.3: Offeror's proposed organization chart will be evaluated for clarity relative to roles and responsibilities.

Sub-factor 5.4: Offeror's lessons learned will be evaluated for clarity, accountability and implementation of lessons illustrated.

Technical Factor 6 – Key Personnel

Sub-factor 6.1: Key personnel resumes will be evaluated for individual and team experience on comparable projects (size, scope, and complexity) within the past 5 years.

Sub-factor 6.2: Team project experience will be reviewed and confirmed to include members of the proposed project team, for how similar in scope and budget the projects described are, and level of involvement from the proposed key personnel.

Sub-factor 6.3: Offeror's descriptions of intra-personnel communication will be evaluated for thoroughness, team inclusiveness and level of documentation.

Technical Factor 7 – Statement of Qualifications

Sub-factor 7.1: Qualification information received will be evaluated to confirm Offeror has an active California contractor's license appropriate to Offeror's trade or California General Contractor's license.

Sub-factor 7.2: Offeror's written statement will be reviewed to ensure:

- Offeror's contractor's license has not been revoked within the past five (5) years;
- Offeror's company has not been debarred within the past five (5) years from working on any U.S. government contracts/subcontracts
- Neither the Offeror's firm, nor any of its owners or officers have been convicted of a crime involving the awarding of the contract of a government (U.S. Federal, State, and City) construction project, or the bidding or performance of a government contract
- Offeror has an established local office for a minimum of 2 years in the San Francisco Bay Area. The San Francisco Bay Area is defined as the following 10 counties: Santa Clara, San Mateo, San Francisco, Alameda, Contra Costa, Marin, Napa, Sonoma, Solano, and Santa Cruz Counties
- Offeror has not had any U.S projects within the past five (5) years terminated for default.

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- Offeror has previous experience working on federal projects

Volume 2 - BUSINESS PROPOSAL EVALUATION

Clearly stamp all company financial documents as “Business Sensitive” or equivalent language, if applicable, on any included documents.

Business Factor 1 – Financial/Business

Sub-factor 1.1: Bonding

Bonding ability will be evaluated for the project and Offeror’s overall bonding capacity letter from the primary’s Surety.

Sub-factor 1.2: The Dun and Bradstreet report will be reviewed for risk and evaluated as meeting the criteria with a D&B Supplier Evaluation Risk Rating of 6 or below. Offeror will be graded on reporting that either “Meet Requirements” or “Does Not Meet Requirements.”

For Bidders with a Dun and Bradstreet SER score greater than 6, or offerors who choose not to participate, audited Financial Statements will be reviewed for risk using three financial ratios – Current Ratio (Working Capital), Debt to Equity Ratio, and General and Administrative (G&A) Expense to Revenue Ratio.

Business Factor 2 - Price Proposal and Subcontract Documentation

Sub-factor 2.1: RFP Section A (Subcontract Form) Submitted RFP Section A will be reviewed for completeness and inclusion of all signed amendments.

Sub-factor 2.2: RFP Section B (Supplier or Service Prices)

- Submitted RFP Section B will be reviewed for completeness.
- Submitted preliminary schedule of values and preliminary expenditure profile will be reviewed for completeness.
- Submitted Price Breakdown Format (refer to Section L – LCLS-II-HE PCW Skid Upgrade Bid Breakdown Form) will be reviewed for completeness.
- Submitted company’s labor rate sheet is thorough and valid through end of the period of performance

Sub-Factor 2.3: Additional Required Subcontract Documentation (Sections A-K) to be completed as indicated below. Additional Documents required of this solicitation will be reviewed for completeness.

- RFP Section H (Special Terms and Conditions) Complete with Key Personnel names and titles
- RFP Section J (List of Attachments) Complete list below:
 - Injury and Illness Prevention Program Acknowledgement Form
 - Small Business Subcontracting Plan
- RFP Section K (Representations & Certifications) Complete and sign

Business Factor 3 – Terms and Conditions Acceptance and/or Exceptions

Acceptance and/or Exceptions to SLAC Terms and Conditions, including all attachments, and

documents incorporated by reference will be reviewed for completeness. This includes all SLAC Terms and Conditions, Technical Specifications, Drawings, Statement of Work, and requirements within the forms listed above under Business Factor 2.

Note that all exceptions to the SLAC Terms and Conditions will require SLAC Legal approval.

3. EVALUATION METHODOLOGY

Although price is important it will not be used for the sole basis for award. A qualitative assessment based on the Technical Factors and Sub-Factors will be made. The technical differences shall be noted between the proposal offers, and adequately documented to determine any price/technical tradeoff to support the final award.

The focus of the proposal evaluation and selection process will be to identify the individual proposal strengths, weaknesses, and deficiencies. The evaluation will analyze each offeror's resources that are available to perform under the contract, and how those resources will be utilized during contract performance. This includes the offeror's proven ability through demonstrated past experience to satisfy all Performance Work Statement requirements.

All technical proposals shall be evaluated utilizing an adjectival technical rating based on "Meets or Does Not Meet" the technical requirements:

Meets Requirements	<u>Acceptable Overall Proposal</u> . The proposal satisfies all of the University's requirements with adequate detail to indicate feasibility of the approach and shows an understanding of the problems and offers some significant strength or numerous minor strengths, which are not offset by weakness, with an overall moderate degree of risk in meeting the University's requirements.
Does Not Meet Requirements	<u>Unacceptable Overall Proposal</u> . The proposal contains minimum detail to indicate feasibility of approach, shows minimal understanding of the project, contains major error(s), omission(s) or deficiency(ies) or involves a moderate to high risk.

The Offeror's Business proposal will be evaluated utilizing a business rating based on "Meets" or "Does Not Meet" the business requirements.

Meets Requirements	Acceptable Overall Proposal. The proposal meets the University's requirements for submission of complete and correct documentation and shows a satisfactory level of financial health.
Does Not Meet Requirements	Unacceptable Overall Proposal. The proposal does not meet the University's requirements for submission of complete and correct documentation, shows an unsatisfactory level of financial health.

Pricing of the highest ranked technical offeror will be evaluated based on completeness, realism, and reasonableness per the below table.

Completeness	Price will be evaluated to determine whether the Offeror provided sufficient data as required by the solicitation and/or SLAC during the evaluation.
Realism	Prices will be evaluated to determine if they are unrealistically high or low in comparison to the Independent SLAC Cost Estimate and/or other offers received.
Reasonableness	Prices reasonableness will be determine using acceptable price and/or cost analyses technique.

4. DEBRIEFINGS

Debriefings may be requested in writing within 3 days upon notification of non-award. Debriefings should occur within 5 days of a written request. The discussion shall not include comparisons with the other proposals. An explanation of the evaluation of significant elements in the Offeror's proposal, summary of the rationale for eliminating the Offeror from the competition and assure the Offeror that its proposal was treated fairly, impartially, and objectively. The Sr. Subcontracts Administrator will conduct debriefing(s)